upon First Amendment rights that results from compelled support for a union as a condition of government employment.

In *Madison School Dist.* v. *Wisconsin Employment Relations Comm'n*, 429 U. S. 167, 175 (1976), we expressly reserved judgment on the constitutional validity of the exclusivity principle in the public sector. The Court today decides this issue summarily:

> "The confusion and conflict that could arise if rival teachers' unions, holding quite different views as to the proper class hours, class sizes, holidays, tenure provisions, and grievance procedures, each sought to obtain the employer's agreement, are no different in kind from the evils that the exclusivity rule in the Railway Labor Act was designed to avoid." *Ante*, at 224.

I would have thought that "conflict" in ideas about the way in which government should operate was among the most fundamental values protected by the First Amendment. See *New York Times Co.* v. *Sullivan*, 376 U. S. 254, 270 (1964). That the "Constitution does not require all public acts to be done in town meeting or an assembly of the whole," *Bi-Metallic Investment Co.* v. *State Bd. of Equalization*, 239 U. S. 441, 445 (1915), does not mean that a State or municipality may agree to set public policy on an unlimited range of issues in closed negotiations with "one category of interested individuals." *Madison School Dist., supra*, at 175. Such a commitment by a governmental body to exclude minority viewpoints from the councils of government would violate directly the principle that "government must afford all points of view an equal opportunity to be heard." *Police Dept. of Chicago* v. *Mosley*, 408 U. S. 92, 96 (1972).[15]

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[15] By stressing the Union's duty of fair representation, *ante*, at 221–222, the Court may be suggesting that the State has provided an adequate means for minority viewpoints to be heard *within* the Union. But even if Michigan law could be read to impose a broad obligation on the union to listen to and represent the viewpoints of all employees on such issues as